THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention o
n the International Maritime Organization concerning the functions of the Marine Environ
ment Protection Committee conferred upon it by international conventions for the prevent
ion and control of marine pollution, RECALLING ALSO that the International Conference on
the Control of Harmful Anti-fouling Systems for Ships, 2001, held in October 2001, adopt
ed the International Convention on the Control of Harmful Anti-fouling Systems on Ships,
2001 (the AFS Convention) together with four Conference resolutions, RECALLING FURTHER t
hat Article 11 of the AFS Convention prescribes that ships to which this Convention appl
ies may, in any port, shipyard, or offshore terminal of a Party, be inspected by officer
s authorized by that Party for the purpose of determining whether the ship - this Conven
tion applies may, in any port, shipyard, or offshore terminal of a Party, be inspected b
y officers authorized by that Party for the purpose of determining whether the ship is i
n compliance with this Convention, NOTING that Article 3(3) of the AFS Conventio n presc
ribes that Parties to this Convention shall apply the requirements of this Convention as
may be necessary to ensure that no more favourable treatment is given to ships of non-Pa
rties to this Convention, NOTING ALSO resolution MEPC.105(49) by which the Committee ado
pted the Guidelines for inspection of anti-fouling systems on ship on 18 July 2003, NOTI
NG FURTHER that by resolution MEPC.105(49), the Committee resolved to keep the 2003 Guid
elines under review in the light of experience gained, HAVING CONSIDERED, at its sixty-s
econd session, the draft 2011 Guidelin